

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN FRANCE

Complete Community Opposition How-To

INTRODUCTION & FRAMEWORK

Community action decides project outcomes in France. The country's most famous environmental victory did not come from a ministry or a courtroom alone — it came from a patch of farmland and woodland near Nantes that a movement refused to surrender for half a century. Plans to build a new airport at **Notre-Dame-des-Landes** had existed since the 1960s; the project was formally approved in 2008 and awarded to the construction giant Vinci. Against it, local farmers and environmentalists mounted one of the longest resistances in modern French history: legal challenges, citizen counter-expertise, mass demonstrations, farmer and trade-union solidarity, and the occupation of the land itself as a **ZAD — a "zone to be defended."** They lost a local referendum in 2016, which went 55 per cent in favour of the airport. The courts rejected their lawsuits. And yet, on **17 January 2018**, the government announced that the airport was **abandoned** — the existing Nantes airport would be upgraded instead. A €580-million project backed by a multinational, the region's elected officials, and a referendum result was stopped, because a movement made it, over decades, politically and practically impossible to build.

Notre-Dame-des-Landes is exceptional, and this guide will be honest that it is. But it teaches the pattern that wins in France: not a single silver bullet, but the patient combination of every available lever — the formal participation procedures, the environmental law, the administrative courts, the counter-expertise, the mobilisation, and sheer endurance — sustained long enough that the cost of the project outgrew the will to build it. It also carries a hard warning, because the same era saw the death of a young activist, Rémi Fraisse, at the Sivens dam protest in 2014 — a tragedy that must temper any romance about confrontation, even as the Sivens project was itself later abandoned once its environmental illegalities were exposed.

Most communities, though, do not know **HOW** to make opposition effective. They attend the enquête publique and go home. They assume the project "will be built anyway," and so they never seize the débat public, never bring an association's legal challenge, never file a référé to suspend the permit, never build the counter-expertise and the sustained pressure that change a decision. They generate a burst of outrage without a plan to sustain it. They gather a crowd and lose it to exhaustion. The gap between a community that stops a project and one that watches it get built is rarely courage or numbers. It is method.

This guide shows what actually works — inside the French system.

The Strategic Framework

Effective opposition campaigns follow the same underlying pattern, whichever project they face:

STEP 1: TARGET IDENTIFICATION	(find the decision and its weak point)
STEP 2: DOCUMENTATION	(build proof of harm and of every defect)
STEP 3: LOCAL OPPOSITION	(organise a movement that lasts)
STEP 4: LEGAL CHALLENGES	(participation, association standing, référé, protected species)
STEP 5: MEDIA STRATEGY	(make the fight visible and impossible to ignore)

These steps operate **simultaneously, not in sequence**. Documentation feeds the legal case and the media story at once; the movement sustains the pressure that decision-makers and courts respond to; a legal challenge is a headline and a headline strengthens a challenge. The community that runs all five together, each reinforcing the others, is the one that wins. Notre-Dame-des-Landes did exactly this — it documented the land's value with its own experts, organised a durable movement, pursued every legal and participatory lever, and made its fight a national story, across decades.

The Levers That Are Distinctly Strong Here

Every country's system has its own pressure points. France's give communities a distinctive set:

- **Upstream public debate.** For very large projects, an independent authority — the **Commission nationale du débat**

public (CNDP) — organises a formal **débat public** on the project's very purpose and main features, *before* it is fixed, and an approved environmental association can trigger it. France lets communities into the argument unusually early.

- **The public inquiry with an independent commissioner.** The **enquête publique** puts the project's impact study before the public, and an independent **commissaire enquêteur** gathers observations and issues a reasoned opinion — and an unfavourable opinion is a powerful weapon.
- **Broad association standing.** Approved **environmental-protection associations** readily have standing to challenge permits in the administrative courts — a genuinely open door to litigation that many countries lack.
- **The référé-suspension.** A fast urgent procedure lets the administrative judge **suspend a permit** where there is urgency and serious doubt about its legality, freezing a project while the case runs.
- **The protected-species lever.** A project that would destroy protected species or their habitat needs a strict **dérogation**, granted only on hard conditions — and failing those conditions has defeated real projects.
- **A constitutional environmental charter.** enshrining in the constitution the right to live in a balanced environment (Article 1), the precautionary principle (Article 5), and the right to information and participation in environmental decisions (Article 7) — principles the courts can and do use to read the ordinary law, The **Charte de l'environnement** gives participation and precaution constitutional status, and France's tradition of mobilisation — from the ZAD to the mass march — is deep and effective.

What This Guide Will Not Pretend

It would be dishonest to promise these levers always prevail. The **débat public** and the **enquête publique** are **consultative, not binding** — the developer can proceed despite an unfavourable opinion, and communities have watched them do it. The state pushes its **grands projets** hard, and a **déclaration d'utilité publique** can override local opposition and enable expropriation. Recent laws have sought to **speed up** industrial, energy, and nuclear projects and to **curb legal challenges**. Direct democracy can cut against you, as the 2016 Notre-Dame-des-Landes referendum did. And the occupation tactics that helped save that airport are legally perilous and, at Sivens, cost a life. This guide takes those facts seriously, names them plainly, and shows you how to win anyway — and, where an outright, permanent stop is not realistic, how to secure the delay, the redesign, the exposure, and the worn-down developer that, in a hard fight, are often what winning actually looks like.

HOW THE SYSTEM WORKS

You cannot pull a lever you cannot see. Before you spend a single weekend, map who actually decides your project's fate, at which level, and where along that path the decision is weakest.

The Levels of Decision

A French development project runs a structured sequence of procedures, and each is a place to intervene.

The State (préfet). For most significant projects — industrial installations, infrastructure, quarries, large developments — the decisive authorisation is the **environmental authorisation** or permit issued by the **préfet** (the State's representative in the department), on behalf of the national government. The préfecture runs the impact assessment and the **enquête publique** and signs the permit. This is where most projects are legally born, and where the permit that a court can annul is issued.

The commune / intercommunalité. Local government controls **planning and land use** — the local plan (PLU) and the building permit (permis de construire) — and the mayor and council can support or resist a project and shape what is buildable. Local planning permits are themselves challengeable.

The national level. For the very largest projects, the **CNDP** organises the upstream **débat public**, and national ministries and operators drive the "grands projets." National law — much of it transposing **European Union** environmental directives — sets the rules the préfet and the courts must apply.

Europe. Cutting across all of this: EU law (on environmental assessment, habitats and birds, water, and air) is directly binding, and a French permit that breaches it is vulnerable — a lever that reaches past the national government to Brussels and the European courts.

The Journey of a Project

A typical large project moves from a proposal, to (for the biggest) a **débat public** organised by the CNDP, to the **étude d'impact** (environmental impact assessment) and the independent opinion of the **autorité environnementale**, to the

enquête publique with its commissaire enquêteur, to the **environmental authorisation and the permits**, through any **protected-species dérogation**, water authorisation, and Natura 2000 assessment, to construction. **Every one of those stages is a door you can put your foot in.** The earliest doors are the cheapest and widest: participation in the débat public, detailed observations at the enquête publique, evidence that the impact study is deficient. The later doors — a legal challenge to the permit, a référé to suspend it, a protected-species case — are more demanding but real, and communities walk through them and win. Find out exactly where your project stands on this path today; that tells you which door is open now.

Follow the Money and the Permit

Behind the permit stand a developer (the **maître d'ouvrage**), its financiers, its public backers, and the préfet and officials who authorised it. A large project is often driven by a major company — built and run through a dedicated subsidiary — and a court later rejected the developer's claim for compensation over the cancelled project, a reminder that abandoning a contested scheme need not hand the opponents' state a ruinous bill. Notre-Dame-des-Landes was Vinci's — answerable to shareholders, lenders, and a public reputation a campaign can reach, and sometimes co-financed with public money that carries its own scrutiny. Trace who owns and funds the developer, who benefits, and which authority issued which permit. Two questions unlock most French fights: **Did the procedure comply with the law — the impact study, the participation, the protected species, the EU rules?** and **Who benefits from pretending it did?** Mapping the chain also shows where the project is exposed that the préfecture is not: a listed developer answers to shareholders and to a public reputation; a bank or an insurer has its own environmental commitments; a project part-funded with public or European money invites the scrutiny of the audit chambers and the EU. These are pressure points the signing authority does not control.

The Overseers

Finally, know the bodies that watch the deciders, because they are levers too. The **administrative courts** — the tribunal administratif, the cour administrative d'appel, and ultimately the **Conseil d'État** — review the legality of permits and can annul or suspend them. The **autorité environnementale** gives an independent, published opinion on the impact study. The **CADA** enforces access to administrative documents. The **Défenseur des droits**, the regional audit chambers, and, for the largest matters, the **European Commission** and courts provide further avenues. Each overseer is a separate front, reachable with the same evidence, and a project rarely survives pressure on several at once. You do not have to choose one door: the same well-documented file can go to the commissaire enquêteur, the administrative judge, the CADA, the audit chamber, the European Commission, the press, and the developer's backers at once, and each front that opens makes the others harder to close. A French campaign's power comes not from any single lever but from applying several at the same time, so that the developer and the State must defend on every side.

QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns drawn from how French and comparable campaigns tend to go, not a controlled study. The decisive variables are whether the **impact study and procedure have real defects**, whether **protected species or EU-protected habitats** are engaged, whether an approved **association** is ready to litigate, whether a **référé** can freeze the permit, and whether the public and the developer's reputation can be reached. Where the procedure is flawed and the movement organises, France's levers are strong; where the state champions a grands projet and the paperwork is clean, discount the figures and think in terms of delay, redesign, exposure, and endurance.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Débat public participation	10-30%	during debate	low	Project reshaped; purpose questioned
Enquête publique observations	15-35%	during inquiry	low	On record; unfavourable opinion; conditions
Legal challenge to the permit (association)	30-50%	12-36 months	low-moderate	Permit annulled; procedure redone
Référé-suspension	25-45%	weeks-months	low-moderate	Permit frozen while the case runs

Protected-species (dérogation) challenge	30-55%	6-30 months	moderate	Project barred or heavily delayed
EU-law / Natura 2000 / water challenge	30-50%	12-48 months	moderate	Permit annulled; Commission pressure
Local planning (PLU / permis) action	25-45%	6-24 months	low	Local block; delay; conditions
CADA / access-to-documents route	high for disclosure	weeks-months	low	Documents released; defects exposed
Media & counter-expertise campaign	25-50%	ongoing	low	Political cost raised; decision shifts
Financier / reputational pressure	20-45%	6-48 months	low	Backer or developer falters
All steps combined (flawed procedure)	45-65%	12-48 months	low-moderate	Stalled, annulled, redesigned, or abandoned
All steps combined (clean grands projet)	25-45%	24-60 months	moderate	Delayed, exposed, conditioned; sometimes stopped

Key insight: every step together beats any single one, and France's real strengths are distinctive — an **upstream débat public**, an **independent public-inquiry commissioner**, **broad association standing** to litigate, the **référé-suspension** to freeze a permit fast, the hard **protected-species dérogation** lever, directly binding **EU environmental law**, and a **deep mobilisation tradition**. Its constraints are **consultative-not-binding participation**, a **state that pushes grands projets** and can expropriate via a déclaration d'utilité publique, **laws curbing legal challenges**, the **referendum risk**, and the **legal peril of occupation**.

A note on cost: participating, documenting, seeking documents through the CADA, and lodging observations are inexpensive, and approved associations, legal-aid, and specialist environmental lawyers carry public-interest cases. Litigation and référés cost more but are within reach, especially through an association. The expenditure that most changes outcomes is committed counter-expertise — an independent ecologist, hydrologist, or economist who can dismantle the impact study — and the reach of the media and mobilisation, exactly what Notre-Dame-des-Landes marshalled.

Effectiveness Visualization

SUCCESS PROBABILITY (stalled, delayed, annulled, redesigned, or abandoned)

FLAWED PROCEDURE -- deficient study, protected species, association ready:

All steps combined: 45-65%
Protected species / EU law: 30-55%
Permit challenge + référé: 30-50% + fast freeze
Enquête publique defects: 15-35%, more with litigation
Single step: 5-45%

CLEAN GRANDS PROJET -- state champions it, paperwork solid:

All steps combined: 25-45%
Mobilisation + expertise + media: the strongest combination
Delay / redesign: more achievable than an outright stop
Single step: 5-40%

How to read this honestly. The levers that most change outcomes in France are **the environmental law and the courts** — the protected-species dérogation, the EU rules, the flawed impact study, frozen by a référé and annulled by the administrative judge — reinforced by **participation, counter-expertise, mobilisation, and reputational pressure**. Notre-Dame-des-Landes shows the ceiling: a decades-long movement combined every lever until the project became unbuildable. The floor is set by the consultative nature of participation and by a state determined to push a grands projet through clean paperwork. Most French fights sit between them, and the honest lesson is that the courts, the protected species, and the movement are real and distinctive levers — but against a well-documented project the state wants, the realistic win is often delay, redesign, exposure, and a developer worn down, as much as an outright, permanent stop. Use the table to plan, not to predict: it tells you which combinations have historically done the most work and where to put scarce time first. The single most important reading is that no row on its own is as strong as the rows run together — the community that documents, forms an association, litigates, counter-experts, and publicises at once consistently outperforms the one that pins its hopes on any single move.

Step Importance Ranking (When All Combined)

1. **The environmental law and the courts** — France's decisive lever; the protected-species dérogation, the EU rules, and the deficient impact study, enforced by an administrative judge who can suspend and annul.
2. **The durable movement** — the mobilisation and endurance that make a project politically and practically impossible,

as at Notre-Dame-des-Landes.

3. **Participation and counter-expertise** — the débat public, the enquête publique, and the independent experts that expose the project's flaws on the record.
4. **The référé-suspension** — the fast freeze that stops the bulldozers while the case is decided.
5. **Reputational and reputational-financial pressure** — the media, the backers, and the public cost that raise the price of proceeding.

What French Campaigns Actually Show

A few patterns recur. **A movement can outlast a project** — Notre-Dame-des-Landes did, across half a century. **The courts bite** — the administrative judge annuls flawed permits and suspends them by référé. **Protected species stop projects** — a missing or unlawful dérogation has defeated real developments. **EU law reaches past Paris** — a permit that breaches the habitats or water directives is vulnerable. **Counter-expertise wins arguments** — an independent study that dismantles the developer's can change the debate. **But participation is only consultative**, the state pushes grands projets, laws are curbing challenges, a referendum can go the wrong way, and occupation carries real danger. The through-line: **find the procedural and ecological defect; organise a durable movement; document and counter-expert everything; use the courts, the protected species, and the EU law; reach the public — and expect a long fight measured in delay, redesign, and exposure as much as an outright stop.**

STEP 1: TARGET IDENTIFICATION

Every effective campaign begins by finding the exact decision that governs the project — and its weakest point. Vague opposition to "the project" goes nowhere; opposition to "the environmental authorisation signed by the préfet on an impact study that failed to assess a protected species and without a lawful dérogation" is a case. Answer five questions.

The Five Core Questions

1. **What exactly is proposed, and under what authorisation?** Name the project, the developer (maître d'ouvrage), and the specific permits it needs or holds — the environmental authorisation, the building permit, the water authorisation, any protected-species dérogation. Each instrument has a paper trail, and each is a place a defect hides.
2. **What stage is it at?** Débat public? Impact study drafted? Enquête publique open or closed? Authorisation signed? Under construction? The stage dictates the door. If the enquête publique is open, your observations and evidence are cheap and powerful. If the permit is signed, a legal challenge and a référé are the route — and the deadline to challenge is short, so act fast.
3. **Are protected species or EU-protected habitats engaged?** This is one of France's most powerful questions. Does the project destroy or disturb **protected species or their habitat** (requiring a strict dérogation), sit in or near a **Natura 2000 site**, or affect **water** under the loi sur l'eau? A missing or unlawful dérogation, or an inadequate Natura 2000 assessment, can defeat a project on the law.
4. **Is the procedure defective?** Was the **impact study deficient** — understating effects, ignoring alternatives, failing the "avoid-reduce-compensate" sequence? Did the **autorité environnementale** criticise it? Was the **enquête publique** flawed, or the commissaire's opinion unfavourable? Was the **débat public** skipped where required? Each defect is a ground.
5. **Who decides, who benefits, and who is watching?** Which préfet, mayor, and ministries authorised it; who owns, funds, and backs the developer; which approved associations, specialist lawyers, experts, press, and local and national allies can be reached. This maps your levers and your audiences at once.

A Worked Example

Suppose a company proposes a large quarry or logistics complex on wooded land that hosts protected species, with the impact study out and the enquête publique about to open, authorised by the préfet.

Working the five questions: the project needs an **environmental authorisation** from the préfet and, because of the wildlife, a **protected-species dérogation** (check whether one has been sought — its absence is a serious defect). It is at the **enquête publique** stage — so detailed observations and counter-expertise are the live, cheap route now, with a permit challenge and a référé held in reserve. The **protected species and any Natura 2000 or water issues** are strong legal levers. The **impact study and the autorité environnementale's opinion** may reveal procedural defects. The préfet's role means the **courts, the protected species, the EU law, and the public** carry more weight than

lobbying the préfecture.

Within a weekend you have moved from "we oppose the project" to a target list: file detailed, evidenced observations at the enquête publique; commission or seek counter-expertise on the impact study and the species; establish whether a dérogation exists and challenge it if unlawful; line up an approved association and a specialist lawyer for a permit challenge and a référé; check Natura 2000 and water; and prepare the woodland-and-wildlife story for the press. That is a campaign, not a complaint. Notice what the exercise did: it converted a diffuse fear into a short list of concrete, assignable tasks — form the association, survey the species, file the observation, brief the lawyer — each tied to a specific lever and each of which can begin this week, several of them before the enquête publique even closes. That is the difference the five questions make.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Documentation is the foundation everything else stands on. An administrative judge, a commissaire enquêteur, a journalist, and a developer's backers all move on evidence, not indignation. Build your file in three layers.

Layer 1: The Official Record

Get the documents the decision rests on. Obtain the **étude d'impact** and the **autorité environnementale's opinion**; the **enquête publique dossier** and the commissaire's report and opinion; the **environmental authorisation and its conditions**; any **protected-species dérogation**, water authorisation, and Natura 2000 assessment; and the **débat public** report if there was one. Much of this is public during the procedures, and the rest is obtainable through the right to access administrative documents, enforced by the **CADA**. The gap between what the impact study claims and what the ecology and the law require is where cases are won. Notre-Dame-des-Landes was fought, in large part, on exactly this — the opponents' own scientists showing the study understated the wetland's value and the protected species it held. Read the impact study not only for what it claims but for what it quietly concedes and what it omits — the species recorded once and then dropped, the alternative dismissed in a sentence, the 'compensation' that assumes a wetland can be rebuilt, the cumulative effects it declines to model. The official record is written to reassure; read against the grain, with an ecologist's eye, it is often where the strongest objection is hiding in plain sight.

Layer 2: The Ground Truth

Document the reality the paper hides. Photograph and date the **actual site** — the woodland, the wetland, the watercourse, the species' habitat — and geotag it. Record **protected species**: sightings, calls, nests, and expert surveys, mapped against the footprint, because a documented protected species the study missed is one of the strongest facts you can hold. Capture **before-and-after** with your own photos and with freely available satellite imagery, to show clearing or the true scale. Commission or seek **counter-expertise** — an independent ecologist, hydrologist, or economist who can show the impact study is wrong, the "compensation" illusory, or the project's justification hollow. Record **testimony** from farmers, residents, and naturalists. Independent counter-expertise is the French campaign's sharpest weapon, and it was central at Notre-Dame-des-Landes. There, the land was a bocage of hedgerows, ponds, and wetlands hosting protected amphibians and other species, and the opponents' naturalists compiled their own inventories showing the official study had understated both the wetland's extent and the protected wildlife it sheltered — evidence that turned a vague 'green' objection into a precise legal problem the developer could not easily answer. A community that produces its own credible species inventory and its own reading of the hydrology is no longer merely protesting; it is contradicting the developer on the developer's own ground, with experts of its own.

Layer 3: The Defects and the Protected Values

Finally, document the failures of procedure and the legal lines the project crosses. Was the **impact study deficient** — understating effects, ignoring alternatives, faking the "avoid-reduce-compensate" sequence? Did the **autorité environnementale criticise it** and the developer ignore the criticism? Was a **protected-species dérogation** missing, or granted without meeting its strict conditions (no satisfactory alternative, overriding public interest, no harm to the species' conservation status)? Was the **Natura 2000 or water assessment inadequate**? Was the **enquête publique or débat public flawed**? Does the permit breach **EU law**? Each defect is a separate ground — for an observation, a permit challenge, a référé, or a complaint to the European Commission — and together they make a case that is hard to wave away. This is the layer that most often decides French fights, because here a project that looked authorised is revealed to breach the protected-species rules, the EU directives, or the procedure the law requires. And it is the layer where community counter-expertise pays off most: an independent expert who can show, point by point, that the impact

study underestimated a protected population, misdescribed a wetland, or invented an 'overriding public interest' converts your objection into the administrative judge's own reasoning. The developer's study is not holy writ; it is a document written by a paid consultant to justify a decision, and a credible rival study puts the two on equal footing before the court.

WHAT TO GATHER, AND WHERE TO FIND IT

This is the practical companion to Step 2: the specific records that decide French cases, and where to obtain them. You will not need every item; you will need the few that expose your project's particular defect.

The Permits and Their Paper Trail

- **The étude d'impact (environmental impact study)** and the **avis of the autorité environnementale**. Public during the enquête publique and on the préfecture's and the authority's sites. Read the study for what it omits or fakes — a protected species, the alternatives, the true "avoid-reduce-compensate" analysis — and the authority's opinion for the criticisms the developer must answer. The autorité environnementale is meant to be independent of the authority that authorises the project, and its opinion is public; where it identifies gaps — an unassessed species, an ignored alternative, an underplayed impact — the developer is expected to respond, and a project that proceeds without answering those criticisms carries them straight into court, where an unaddressed environmental-authority critique is strong evidence that the impact study was inadequate.
- **The enquête publique dossier and the commissaire enquêteur's report and opinion** — an unfavourable or heavily reserved opinion is a strong weapon.
- **The environmental authorisation (or the permits)** and their conditions, from the préfecture.
- **The protected-species dérogation** (if any), the water authorisation, and the Natura 2000 impact assessment — and, crucially, note if a required one is missing.
- **The débat public dossier and report**, from the CNDP, for the largest projects.
- **The local planning instruments** — the PLU and any building permit — from the commune.

How to Get Them

Much of this is public during the **débat public** and the **enquête publique** — the two windows when participation is cheapest and most powerful, so watch for them and act while they are open. For everything else, use the **right of access to administrative documents**: a written request to the authority, and, if refused or ignored, a referral to the **CADA (Commission d'accès aux documents administratifs)**, which can order disclosure. A refusal is itself a documentable fact. Move early: the participation windows are fixed and short, and the deadline to challenge a permit in court is measured in weeks or a couple of months, so evidence and objections entered while the doors are open carry far more weight — and preserve far more of your rights — than the same point raised after the works begin. A practical tip: make document requests specific and dated, keep proof of when you sent them and when they were answered, and treat any refusal or silence not as a dead end but as a new, documentable fact and the trigger for a CADA referral. An authority that will not release its own impact study or environmental-authority opinion is telling you something worth knowing.

The Ground Evidence

- **Dated, geotagged photographs and video** of the site, the habitat, the watercourse, the works.
- **Protected-species records** — your own and naturalists' sightings, surveys, and expert reports, mapped against the footprint; a documented protected species the study ignored is decisive.
- **Satellite before-and-after** from freely available imagery, to show clearing or the true extent.
- **Independent counter-expertise** — an ecologist's, hydrologist's, or economist's report dismantling the impact study, the compensation, or the project's justification. Approved associations and specialist networks can help source these.
- **Maps** overlaying the footprint on the protected-species habitat, the Natura 2000 site, the watercourse, and the wetland — a single map showing a project in protected-species habitat or a Natura 2000 zone is worth pages of argument.
- **Testimony** from farmers, residents, and naturalists on the land, the water, and the wildlife.

Organise It So It Persuades

Keep a **master timeline** of every procedure, opinion, permit date, participation window, and challenge deadline — the spine of any court case. Keep a **document index** so any fact can be sourced in seconds. And keep an **argument bank** (developed in a later section) that pairs each fact with what it proves, to whom. A well-ordered file is not bureaucracy; it is what lets a volunteer, a lawyer, a journalist, and a judge all see the same clear picture fast — and it guards against the campaign's own worst enemy, a claim that cannot be sourced when the other side challenges it. In a fight that can run for

years and pass through many hands, the community with the better-kept file is very often the one that prevails.

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE A MOVEMENT THAT LASTS

Evidence and law do not stop projects on their own. Organised people do — sustained, visible, and credible over the months or years a fight takes. This is the step Notre-Dame-des-Landes did best: a movement that endured for decades and drew in farmers, naturalists, lawyers, unions, and citizens alike.

Phase 1: The Core and the Association

Start with a small, committed core — five to fifteen people who will carry the work. In France, one early, concrete move matters more than almost anywhere: **form or join an approved environmental-protection association (association loi 1901)**, because an association gives your campaign a legal person that can seize the CNDP, participate formally, and — crucially — bring challenges in the administrative courts. A French association is simple and cheap to create under the 1901 law, and its published statutory purpose (*objet*) matters: courts assess an association's standing partly by whether the harm falls within its stated purpose and geographic scope, so draft the *objet* to cover environmental protection in your area from the outset. National federations such as France Nature Environnement, and specialist bodies such as the LPO for birds, hold formal environmental *agrément* and long litigation experience, and a local association allied to one of them combines local legitimacy with proven legal reach. Assign roles: documentation, legal liaison, counter-expertise, media, community liaison, and coordination. Agree on the goal — abandonment, an annulled permit, a redesign, conditions — and on what you will and will not accept.

Phase 2: The Coalition

Then widen deliberately. Bring in **farmers and landowners, naturalists and scientists, local residents, students, unions, and elected sympathisers**. Reach the **allies with capacity** — the national and regional environmental federations (such as France Nature Environnement and the LPO for birds) whose expertise, standing, and reach can amplify a local fight; specialist environmental lawyers; independent scientists for the counter-expertise; and, where relevant, the farming and trade-union networks. Notre-Dame-des-Landes drew its unusual power from exactly this breadth — peasant farmers, naturalists, urban activists, and unions in a single, durable coalition — which is precisely the spread a winning campaign needs.

A worked coalition example. Facing a quarry in protected-species habitat, a handful of neighbours, a farmers' group, and a local naturalist form the core and an association; they bring in a regional federation with legal standing, a specialist lawyer, and an independent ecologist; the commune passes a motion of concern; and the national federation amplifies the fight and briefs the press. No single group could have carried it; together they cover documentation, law, science, local legitimacy, and reach.

Phase 3: Sustaining It

Campaigns die of burnout, not defeat. Meet on a rhythm. Give people concrete, finishable tasks. Mark small wins — an unfavourable commissaire's opinion, a document pried loose, a référé won, a species confirmed. Rotate the exhausting roles. And protect people: keep leadership collective and visible; document every threat or intimidation; get early legal advice on any personal legal exposure; and, above all, weigh physical tactics with great care — the ZAD helped save Notre-Dame-des-Landes, but occupation is legally perilous and, at Sivens, cost a life. Sustaining a campaign — as Notre-Dame-des-Landes's decades show — is how these fights are won, and it need not, and mostly should not, mean confrontation. Build in the human things that keep people together: welcome newcomers, share meals, mark the anniversaries and the small victories, and make the campaign a community people want to belong to. The associations that endure for years are the ones whose members would still gather if the project vanished tomorrow — and that durability is itself what outlasts a developer betting on fatigue.

Phase 4: Showing Strength

Numbers and legitimacy must be seen. Turn people out for the enquête publique and public meetings. Gather large numbers of individual, substantive observations. Hold peaceful, well-documented actions — the marches, the naturalist "bio-blitzes" that document species, the symbolic occupations of a threatened field — that made Notre-Dame-des-Landes a national cause. Choose actions that photograph and travel well and that anyone can join — a naturalists' inventory day

that also gathers legal evidence, a signature drive, a peaceful gathering on the threatened land, a chain of stalls at the market. Document them yourselves, so the breadth and the spirit of the turnout survive as a record even if no outlet covers them, and keep them lawful and welcoming, so the movement's strength is never handed to the other side as a pretext. The point is not spectacle; it is to demonstrate, to the préfet, the courts, the developer, and the press, that the opposition is broad, rooted, expert, and not going away — and to do so within the law, so the movement's strength is never handed back to the other side as a liability.

STEP 4: LEGAL CHALLENGES — PARTICIPATION, ASSOCIATIONS, THE RÉFÉRÉ, AND PROTECTED SPECIES

French law gives communities a real arsenal, and you do not need a final ruling to win with it: an observation, a challenge, or a référé delays a project, forces disclosure, and creates leverage and headlines. Engage a specialist lawyer and an approved association early — but understand the tools yourself.

Participation: the Débat Public and the Enquête Publique

The first levers are the participation procedures. For the very largest projects, the **CNDP** organises a **débat public** on the project's purpose and main features, *before* it is fixed — and an approved national association can trigger it. The CNDP is an independent administrative authority, and its reach is unusually wide: it can be seized not only by the developer and the Government but by sixty deputies or senators, by an approved national environmental association, and even by 500,000 EU residents in France — and it can take up a project on its own initiative. After the debate it publishes a report the developer must reckon with, and it can appoint a *garant* to ensure participation continues right through to the enquête publique. The point of the débat public is that it opens the argument over whether a project should exist at all, at a stage when it can still be dropped or fundamentally changed. For projects subject to environmental assessment, the **enquête publique** puts the impact study before the public, and an independent **commissaire enquêteur** gathers observations and issues a **reasoned opinion**. That opinion — *favorable*, *favorable avec réserves*, or *défavorable* — is reasoned and public, and while it does not bind the préfet, an unfavourable opinion, or a favourable one loaded with reserves the project cannot meet, is a serious political and legal liability: it signals to the courts and the public that even the official inquiry found the project wanting, and it is precisely the kind of fact that strengthens a later challenge. These are consultative, not binding — but they are far from empty: France runs these procedures precisely because the law wants the public in the room before the concrete is poured, and a community that treats them seriously — arriving with evidence, expertise, and numbers rather than only anger — extracts far more from them than one that dismisses them as theatre. A well-argued, evidenced body of observations, and above all an **unfavourable commissaire's opinion**, become part of the record, raise the political cost, and strengthen any later court challenge. Treat them as the first shots of the legal case, not as a formality, and everything you enter there works twice — once in the participation procedure itself, and again later in the courtroom.

The Legal Challenge — with Broad Association Standing

France's distinctive litigation advantage is **standing**: an **approved environmental-protection association** whose statutory purpose covers the area and the harm readily has **intérêt à agir** to challenge a permit before the **administrative court** — a genuinely open door that individuals alone often lack. The challenge (a recours before the tribunal administratif, with appeal to the cour administrative d'appel and the **Conseil d'État**) asks the judge to **annul** the authorisation for illegality — a deficient impact study, a missing or unlawful protected-species dérogation, an inadequate Natura 2000 or water assessment, a breach of EU law, a procedural flaw. An annulment sends the project back to the start, which delays it and can kill it. This is why forming an association early is one of the highest-value moves a French campaign can make.

The Référé-Suspension — Freezing the Permit Fast

A permit challenge can take years, during which the bulldozers may arrive — so France gives you a fast companion: the **référé-suspension**. Where there is **urgency** and a **serious doubt about the permit's legality**, the administrative judge can **suspend** the authorisation within weeks, freezing the project while the main case is decided. The two conditions are urgency and a serious doubt about the permit's legality: urgency is usually easy to show once earthworks or clearing are imminent, because the damage to habitat would be irreversible, and the 'serious doubt' is exactly what your documented defect — the missing dérogation, the deficient study — supplies. Because a suspension can be obtained quickly and lifts only if the developer later prevails, it shifts the pressure and the delay onto the project at the moment it can least afford them. A référé won is often decisive, because a suspended project loses momentum, money, and political

will. Ask your lawyer about it the moment a permit is signed.

The Protected-Species Lever

Among the hardest legal lines in France is the **protected-species regime**. Destroying or disturbing protected species or their habitat is prohibited unless the project obtains a strict **dérogation**, granted only if there is **no satisfactory alternative**, an **overriding reason of major public interest**, and **no harm to the species' favourable conservation status**. Courts scrutinise these conditions closely, and projects have been blocked or long delayed for proceeding without a *dérogation*, or on one that failed the test. If your site holds a documented protected species, this is often your single strongest ground — establish the species early, with expert surveys, and press it hard. The three conditions are cumulative, and the courts — up to the Conseil d'État — apply them strictly: the developer must show there is genuinely no less-damaging alternative, that the project answers an overriding reason of major public interest, and that the derogation will not undermine the species' favourable conservation status. A commercial or purely local benefit rarely clears the 'overriding public interest' bar, and a compensation scheme that merely promises to recreate habitat elsewhere is treated with suspicion. This is why a single documented protected species, pressed through this test, can stop a project that everything else waved through.

Where to File and With Whom

Permit challenges and *référé*s run before the **administrative courts**, up to the **Conseil d'État**; EU-law breaches can also be raised with the **European Commission**, which can open infringement proceedings against France. The most useful EU grounds are the **Habitats and Birds Directives** (which underpin Natura 2000 and the protected-species regime), the **Environmental Impact Assessment Directive** (which the *étude d'impact* must satisfy), and the **Water Framework Directive** (which forbids authorising a project that would cause a water body to deteriorate — a ground that has felled real projects). Because these directives are directly binding and the French judge must apply them, an EU-law argument is often stronger before the national court than a complaint to Brussels, which is slow; but the two reinforce each other, and the threat of infringement is itself a pressure on the government. Get help early: approved associations, specialist environmental lawyers, and the national federations know exactly these procedures and can advise on standing, the strongest ground, the short deadlines, and the *référé*. A lawyer and an association engaged while the *enquête publique* is open and the challenge deadline is alive are worth far more than help sought after the works begin. Ask at the first meeting about the exact deadlines for your project's category, the availability of a *référé*, whether legal-aid or the association's own resources can carry the cost, and which single ground is strongest — a focused challenge on one clear illegality often beats a scattergun of weak ones, and your lawyer's judgement on which to lead with is worth seeking early.

TURNING YOUR EVIDENCE INTO ARGUMENTS

You have a file of evidence. Now you must turn it into arguments — because the same fact persuades an administrative judge, a commissaire enquêteur, a préfet, a journalist, a backer, and the community itself in different ways. Learning to translate your evidence for each audience is what lets a community reach every lever at once.

One Fact, Many Arguments

Take a single documented fact — say, that a quarry was authorised on an impact study that never assessed a protected species present on the site, and without the required *dérogation*. That one fact becomes:

- **A legal argument:** the authorisation is illegal — a deficient impact study and a missing protected-species *dérogation* — grounds to annul the permit and to suspend it by *référé*.
- **A protected-species argument:** a legally protected species loses its habitat unlawfully, unassessed — the issue that mobilises naturalists and the courts.
- **A procedural argument:** the *enquête publique* proceeded on a study the *autorité environnementale* itself faulted, tainting the whole decision.
- **A media argument:** a quarry approved without even counting the protected wildlife it will destroy — a clear, human-and-nature story with a stake.
- **A reputational argument:** a project resting on an illegal, annulable permit is a legal and reputational risk to the developer and its backers.

Same fact, five arguments, five audiences. Go through your strongest facts and, for each, ask what it proves to each audience. That table is your campaign's argument bank — and in France the arguments that most often decide things are the **protected-species and procedural illegalities**, because they hand the administrative judge a reason to annul. Keep the arguments anchored to the same documented facts, so a claim made to a reporter can be backed in the court

file and a claim made to the judge can be spoken plainly at a public meeting; consistency across audiences is itself persuasive. Learning to move fluently between these registers — the precise illegality for the judge, the protected species for the naturalist and the public, the reputational risk for the backer, the human story for the reporter — is one of the most valuable skills a campaign develops, because it lets the same underlying evidence work every lever at once without ever straying from the facts.

Match the Argument to the Audience

The administrative courts want the illegality framed precisely against the specific rule — the impact-study deficiencies, the missing *dérogation*, the EU-law breach, the procedural flaw — with the documents and the timeline that prove it.

The préfet and elected officials respond to legal risk and political cost — the annulable permit, the unfavourable commissaire's opinion, the mobilised public, the exposure of having authorised a defective project.

Journalists need a specific, verified, human-and-nature story with a hook: a named place, a protected species or wetland, a documented defect, an imminent decision.

Developers and backers respond to legal and reputational exposure — a permit that a court may annul, tied to a named company with a public reputation.

The community itself needs to see that the fight is winnable and shared — the small wins, the growing movement, the pressure mounting — so it lasts. Nothing sustains a movement like visible progress, so name and celebrate each concrete step — the association formed, the species confirmed, the document released, the *référé* won — as proof that the fight is real and the machine is not invincible.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Media is not vanity; it is a lever. Coverage raises the political cost of a project, reaches the préfet, the ministries, and the developer's backers your letters cannot, protects activists by making them visible, and can turn a local fight into a national cause. Notre-Dame-des-Landes proved it: decades of coverage made a field near Nantes a question in national politics, and the sheer visibility of the movement was part of what finally made the airport unbuildable.

Build the Story

Reporters need specifics: a named place and people, a dated and documented defect or protected value, a clear stake, and a live decision or deadline. "A project threatens the environment" is not a story; "a quarry has been authorised to destroy the last local habitat of a protected species, on a study that never counted it and without the licence the law requires, with the works due to start next month" is. Lead with your strongest verified fact, attach the map and the species photos, and offer a human voice — a farmer, a naturalist, a resident — and your independent expert.

Reach the Right Outlets

Work outward in rings. **Local and regional press** first, where the project is felt and the préfet and mayors read it. Then **national outlets** — the major papers, broadcasters, and France's strong investigative and environmental press — which carry political weight. Then, for a project touching a listed company, a public backer, or a globally resonant value, **European and international media**, which reach the developer's reputation and Brussels. Feed each ring what it needs, and let coverage in one pull in the next. Pay particular attention to the ring that reaches the **decision and the money**: national coverage raises the political cost to the government of backing a *grands projet*, and reputational coverage can reach a listed developer where the *préfecture* cannot. It is worth identifying the specific investigative and environment journalists who cover land, water, and biodiversity, and the outlets that specialise in ecological reporting; a reporter who already knows the terrain needs less briefing and writes with more authority, and a single well-sourced investigation into a project's illegal permit or missing species licence can move a minister or a backer more than a month of brief notices. Offer your strongest documented finding as an exclusive and you gain an ally, not just a mention.

Sustain It, Make It Safe and True

A single article changes little; a drumbeat changes decisions. Plan a sequence — the *débat public*, the *enquête publique*, the counter-expertise, the permit challenge, the *référé*, the species survey, the march — so there is always a next hook,

and build your own record (a simple site, a social feed, a growing album of dated photographs and species records) so the story exists in a form journalists can pick up and that survives if posts are removed. Keep messaging disciplined, accurate, and consistent; one exaggeration handed to the other side can cost you credibility you cannot rebuild, and be careful and factual when naming individuals or companies. Verified, specific, human, and relentless — that is the coverage that shifts outcomes.

EMAILS & LETTERS

Written communications are how you lodge observations, create a record, and reach the bodies that can act. Each does double duty: it asks for something and it documents that you asked. Keep copies of everything, and send important items so that receipt is provable. Below are adaptable templates for the situations you will meet most often. Keep them factual, specific, and grounded in the law and the evidence.

8A. Observation at the Enquête Publique / Débat Public

To: the commissaire enquêteur (via the enquête register or email) [or the CNDP débat] **Subject:** Observation — [project], enquête publique [reference]

As [a resident / an approved association], I object to [project] at [location]. My grounds, with evidence: (1) the étude d'impact [understates / omits] [effect — e.g. the protected species [name] present on the site]; (2) [no protected-species dérogation has been sought / the Natura 2000 or water assessment is inadequate]; (3) [the autorité environnementale criticised the study on [point], unanswered]; (4) [alternatives were not seriously examined]. I request an **unfavourable opinion**, or that the project be [refused / substantially revised], and that this observation be recorded. [Attachments: expert note, species records, maps.]

8B. Request for Access to Administrative Documents (with CADA fallback)

To: [the préfecture / the maître d'ouvrage / the authority] **Subject:** Request for communication of administrative documents — [project]

Under the right of access to administrative documents, I request copies of: the étude d'impact and the avis of the autorité environnementale; the enquête publique report and the commissaire's opinion; the environmental authorisation and its conditions; any protected-species dérogation, water authorisation, and Natura 2000 assessment; and [specified correspondence]. Please provide these within the legal term. Failing a reply, I will refer the matter to the CADA.

8C. Letter Instructing an Association / Lawyer (permit challenge and référé)

To: an approved environmental association / a specialist administrative lawyer **Subject:** [Project] — permit challenge and référé-suspension

We believe the [environmental authorisation] for [project], signed on [date], is illegal because [the impact study is deficient / no lawful protected-species dérogation exists / the Natura 2000 or water assessment is inadequate / EU law is breached / the procedure was flawed]. We attach the permit, the study, the autorité environnementale's opinion, our expert note, and our timeline. Given the imminent works, we ask you to advise on and prepare **a recours to annul the permit and a référé-suspension**, noting the short challenge deadline.

8D. Referral on Protected Species / Natura 2000

To: the préfecture (environment service) [copy: the regional environment directorate] **Subject:** [Project] — protected species and required dérogation

[Project] at [location] will destroy or disturb the protected species [name], documented on site (see attached surveys and records), yet [no dérogation appears to have been sought / the dérogation granted does not meet the conditions of no satisfactory alternative, overriding public interest, and no harm to conservation status]. [If applicable:] the site also lies in / near the Natura 2000 zone [name]. We request that [the authorisation be suspended / a proper dérogation procedure and Natura 2000 assessment be required], and reserve the right to challenge the permit.

8E. Complaint to the European Commission (EU-law breach)

To: the European Commission (environmental complaints) **Subject:** Complaint — breach of EU environmental law,

[project], France

We submit that the French authorisation of [project] breaches [the Habitats/Birds Directive / the EIA Directive / the Water Framework Directive] because [the protected species/habitat was not properly assessed or protected / the impact assessment was deficient / the water body's status will deteriorate]. We attach the permit, the impact study, our expert evidence, and the relevant maps, and request that the Commission examine the matter and consider infringement proceedings.

8F. Letter to the Mayor / Préfet / Elected Representative

To: [the mayor / the préfet / a deputy or senator] **Subject:** [Project] — concerns and request

We are residents of [place] writing about [project]. Our concern, briefly: [one or two specific grounds — a threat to a protected species and a wetland, a deficient study, a missing dérogation]. Within your responsibility, we ask you to [refuse or condition the authorisation / decline the building permit / require a proper dérogation and assessment / raise this with the authorities]. [If true:] [#] residents and [#] associations share this concern, and the permit carries real legal risk. We welcome a meeting and can share our full evidence.

8G. Outreach to a National Federation / Backer

To: [a national environmental federation] [or the developer's financier / public backer] **Subject:** [Project] — support sought / risk flagged

[To a federation:] We are a local association facing [project], which [one-line stake — e.g. "would destroy protected-species habitat on an illegal permit"]. We seek your [legal standing and expertise / amplification], and can send a brief and arrange a call. [To a backer:] We write regarding your [financing / support] of [project], whose authorisation we believe is legally vulnerable for [reason]; we ask you to weigh the legal and reputational risk, and are happy to share our evidence.

8H. Email to a Reporter (Regional, National, or International)

To: [journalist] **Subject:** Story tip: [specific finding] — [the place / the species]

I follow your coverage of [beat]. We have something your readers should know, with a clear news hook: [documents] show [quantified finding — e.g. "a quarry was authorised to destroy the last local habitat of the protected [species], on a study that never counted it and without the required licence, with works due [date]"]. It is specific, verified, and it echoes Notre-Dame-des-Landes. I can share the full file and connect you with residents, a naturalist, and our expert. Could we talk this week?

Using the Templates Well

Send important communications so that receipt is provable, and log every one in your timeline — above all the participation windows and the short permit-challenge deadline. Keep them factual, specific, and grounded in the law and the evidence; attach your documentation, species records, and expert notes; and route them, where you can, through or with the association, your specialist lawyer, and your national and expert allies. The reply — or the silence — becomes part of your record, and in France that record feeds the levers that matter most: the participation procedures, the protected species, the courts, the EU law, and the public.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a long campaign. With a few hours a week you can still do real damage to a bad project. In rough order of impact for the effort:

1. Form or join an approved association — first. In France this is the master key: an association can participate formally, seize the CNDP, and, above all, challenge the permit in court. It is the single highest-value move, and it costs almost nothing.

2. Check for protected species and a dérogation. Establish whether the site holds protected species and whether the project has the required dérogation. A documented protected species with no lawful licence is often the strongest ground there is — and naturalists will help you find it.

3. Lodge detailed observations at the enquête publique. One substantive, evidenced observation (8A) puts your case on the record, can win an unfavourable commissaire's opinion, and strengthens any later court challenge — but the window is short, so act now.

4. Get the documents. The impact study and the autorité environnementale's opinion are public during the inquiry; the rest comes on request, with the CADA behind it (8B). The gap between the study and the law is usually the case.

5. Line up a permit challenge and a référé. The moment a permit is signed, a specialist lawyer or association can prepare a recours to annul it and a **référé to suspend it fast** (8C) — but the deadline is measured in weeks, so do not wait.

6. Tell the story. A protected species or a wetland is a strong story; one accurate tip (8H) can reach the préfet, the ministries, and the developer's reputation a submission never will.

7. Reach the federation. A national environmental federation (8G) can lend standing, expertise, and reach a local group lacks.

Do only the first three and you will have created the legal person that can fight, found your strongest ecological ground, and put your case on the record while it counts — the exact foundation a bigger fight is built on. Then come back and read the rest. Even the shortest version has a spine: form the association, find the protected species, lodge the observation. Everything else in this guide amplifies those three moves. A community that does only them has already done more than most projects' opponents ever manage — and has often done enough to force an unfavourable inquiry opinion, expose an illegal permit, and put the préfet on notice that this project will be litigated, watched, and fought.

WHEN THE SYSTEM IS TILTED

France's system is tilted in specific ways you must understand, so you neither waste effort nor miss the levers that still work.

Where the Tilt Shows

The tilt runs through the **consultative nature of participation**: the débat public and the enquête publique inform the decision but do not bind it, and a developer can proceed despite an unfavourable opinion. The **state pushes its grands projets**, and a **déclaration d'utilité publique** can override local opposition and authorise **expropriation**. The DUP is the instrument by which the State declares a project to be in the public interest, clearing the way to compulsorily purchase the land — and it is itself a decision that can be challenged in the administrative courts, on the ground that the project's disadvantages (environmental, financial, social) outweigh its public benefit under the judge-made 'balance-sheet' review. A DUP is therefore both the state's most powerful push and, when the project's costs plainly exceed its benefits, another permit to attack. Recent laws have sought to **accelerate** industrial, renewable-energy, and nuclear projects and to **restrict legal challenges** — shortening deadlines, limiting successive appeals, and narrowing standing in places. This matters practically: the window to challenge some permits has been compressed, certain projects benefit from streamlined or presumed-public-interest procedures, and courts have been pushed to rule faster. None of this abolishes the core levers — the impact study, the protected species, the EU directives, and association standing all survive — but it makes acting early, and knowing the current deadlines, more important than ever. Check the precise rules that apply to your project's category before you rely on a timeline, because this is the part of French law most in flux. **Direct democracy can betray you**, as the 2016 Notre-Dame-des-Landes referendum showed. And the **occupation tactics** that helped save that airport are legally perilous and, at Sivens, cost the life of Rémi Fraisse. Fraisse, a 21-year-old botanist, was killed by a gendarme's grenade during a night-time protest at the Sivens dam in 2014 — the first protester killed on the French mainland in decades. The Sivens project itself was later abandoned in its original form once expert reports found it oversized and its authorisation legally flawed on protected-species and water grounds — a bitter vindication that the environmental-law levers, not the confrontation, were what could lawfully have stopped it. The lesson runs both ways: the law offered a route, and the tragedy is a warning about the cost of the other one. Where this tilt bites, the formal process gives less than it should — but real levers still reach past it.

What Still Works — And Some Is Distinctive

The decisive point is that even where the system tilts, real and distinctive levers reach past it.

The courts and the environmental law cannot be waved away. A deficient impact study, a missing protected-species dérogation, or an EU-law breach is an **illegality an administrative judge can annul** — and a **référé can freeze** the works fast — whatever the government wants.

Association standing keeps the courthouse door open. An approved association can litigate whatever the préfet prefers, and the protected-species and EU-law grounds are among the hardest to defeat.

Europe reaches past Paris. EU environmental directives bind France directly, and the European Commission and courts are a front the national government does not control.

Counter-expertise changes the argument. An independent study that dismantles the developer's is a weapon the state cannot confiscate.

The movement endures. France's deep mobilisation tradition, and the standing and reach of its national federations, give a community a durability a developer counting on fatigue cannot easily outlast.

The Honest Frame

So the honest frame for France is real but demanding. The environmental law, the courts, association standing, the référé, the protected species, EU law, counter-expertise, and a deep mobilisation tradition give a community genuine — in places distinctive — power, as Notre-Dame-des-Landes proved. But participation is only consultative, the state pushes grands projets and can expropriate, laws are curbing challenges, referendums can go the wrong way, and occupation carries real danger. So diagnose the tilt honestly: lean on the courts, the protected species, the EU law, and the movement, not on a friendly préfet; document every defect and species; protect your people and keep the fight within the law; treat a win as something to be defended, not banked; and think in terms of delay, redesign, exposure, and a developer worn down as much as an outright, permanent stop. Against a clean grands projet the state wants, that is often what winning looks like — and it is real.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Sometimes a project advances not despite the evidence but because someone is being paid, pressured, or improperly favoured. Undue influence changes your strategy: you stop trying to persuade a captured decision-maker and start exposing and going around them.

How to Tell

Look for the signatures of capture. An **authorisation signed against the evidence**, over the autorité environnementale's criticism and strong documented objections, without addressing them, suggests more than error. **Undisclosed interests, favours, or revolving-door ties** between the developer and the deciders; an **impact study curtailed or a dérogation waved through; conditions never enforced**; and **decisions timed to avoid scrutiny** all point the same way. And **pressure or legal threats against the campaign's leaders** are themselves a signature of something wrong. One anomaly may be error; a pattern is capture. Corruption tends to leave its fingerprints in the sequence of events — lay your timeline beside the official one and watch for approvals that cluster around a meeting, an appointment, or a favour.

Who Can Be Captured — and Who Is Harder

Be clear-eyed about where undue influence reaches. A **local official, a préfectoral decision, or a rushed enquête** can be pressured or captured. But the French system has bodies harder to reach that a captured local arrangement cannot easily control: the **administrative courts and the Conseil d'État**; the **autorité environnementale** with its published opinion; the **CADA**; the regional **audit chambers** and the anti-corruption authorities; the **European Commission and courts**; and the national press and federations. Undue influence thrives on darkness and on staying local; your task is to lift the matter out of the captured node and into the light and the higher, cleaner fora.

What to Do

Do not confront and tip off the captured decision-maker. Instead, **document the anomaly precisely** — the dates, the interests, the ignored criticisms, the missing enforcement — and refer it, with evidence, to the bodies above: the administrative court and the référé, the CADA, the audit and anti-corruption authorities, the European Commission, and the press. Pair the referral with the permit challenge, the protected-species case, and the counter-expertise, so the wrongdoing and the harm are exposed together. Exposure has its own momentum: an audit finding or a published critical opinion creates a record other bodies must reckon with, and a study shown to be curtailed collapses the procedure the

permit stood on. And protect yourself above all — get legal advice, coordinate with your association and lawyer, keep the work collective and documented, and never carry it alone.

INTEGRATION & TIMELINE

The five steps win when they run together. Here is how they fit across the life of a fight.

Early (Weeks 0-8): Form, Identify, and Document

Form or join the **association** (Step 3), and pin down the project, the permits, and the stage (Step 1). Begin the file — get the impact study and the *autorité environnementale*'s opinion, request documents with the CADA behind you (Step 2 and What to Gather). And move fast on what will not wait: **lodge observations at the enquête publique**, and **establish whether protected species and a lawful dérogation are in play**. Line up a specialist lawyer now, before the short challenge deadline. This early phase is cheap, and it sets up everything else.

Middle (Months 2-24): Escalate on Every Front

Grow the movement and the coalition (Step 3). Commission the **counter-expertise** and turn your evidence into arguments for each audience (Turning Evidence). Escalate legally as the facts warrant — a **permit challenge and a référé-suspension**, a protected-species case, a Natura 2000 or water challenge, a complaint to the European Commission (Step 4). Refer any capture to the audit and anti-corruption bodies. Build the media drumbeat from local to national to European (Step 5). Each front feeds the others: a *référé* is a headline, a headline is pressure, pressure moves a *préfet* or a minister, and a disclosed document strengthens the court case. Do the cheap, time-sensitive things first, because a missed inquiry window or a lapsed challenge deadline cannot be recovered. And sequence the legal moves with your lawyer so they land when they bite hardest — the *référé* timed to the imminent works, the main challenge built on the fullest record, the EU complaint held ready — because a well-timed suspension can do more to stop a project than a stronger argument filed too late.

Later (Months 6-60+): Sustain, Win the Line, and Redefine the Win

Sustain the movement against burnout; protect your people; keep the record and the coverage alive. Pursue the durable prizes — an **annulled permit**, a **refused or unlawful dérogation**, a **redesign**, an **abandonment**. And judge success honestly. Sometimes it is an outright, permanent stop — a project abandoned, as Notre-Dame-des-Landes finally was. More often, in a fight against a *grands projet*, it is a project **delayed for years, shrunk, redesigned, or so exposed and legally besieged that the developer walks away**. That is not a lesser victory. It is what winning usually looks like, and it is worth every effort it takes.

The Shape of a Campaign

WEEKS 0-8	Form the association Identify Document Observe at the enquête Find the protected species Get a lawyer
MONTHS 2-24	Grow the movement Counter-expertise Permit challenge + référé Protected species EU complaint Media
MONTHS 6-60+	Sustain Protect people Win the annulment / redesign / abandonment Redefine the win

FINAL ASSESSMENT

France gives communities a genuinely powerful — and, in places, distinctive — set of tools, and the honest measure of this guide is how squarely it faces both their strength and their limits.

The strengths are real and distinctive. A community can enter the argument **early**, through the *débat public*, and put its case on the record at the **enquête publique**, before an independent commissioner. It can form an **approved association** with an open door to the **administrative courts**, and ask a judge to **annul** a flawed permit and to **suspend it fast by référé**. It can stand on the hard **protected-species** line and on directly binding **EU environmental law**, both among the hardest grounds to defeat. It can wield **counter-expertise** that dismantles the developer's own study. And it can draw on a **deep mobilisation tradition** — the federations, the marches, and, at the limit, the ZAD — that turned a field near Nantes into a fight the state finally abandoned.

The limits are just as real. Participation is only consultative; the state pushes *grands projets* and can expropriate through a *déclaration d'utilité publique*; recent laws are curbing legal challenges; a referendum can go against you; and the

occupation tactics that helped save Notre-Dame-des-Landes are legally perilous and, at Sivens, cost a life. No guide should pretend otherwise. Notre-Dame-des-Landes was exceptional, and it took half a century; that is the condition of this fight, not its exception.

So the realistic promise is this: **form the association early, document every defect and protected species, use the participation procedures, the courts, the référé, the protected-species line, and EU law, wield counter-expertise, and reach the public — and run all of it together, protecting your people and keeping the fight within the law.** Do that, and even against a state-backed project you can force delay, redesign, exposure, an annulled permit, and a developer worn down — and sometimes an outright stop. Do it as Notre-Dame-des-Landes did, with a durable movement joined to relentless legal and expert pressure, and you can win a victory that saves not only your own place but stands as proof for the next community.

A last word on endurance. These fights are won in years, sometimes decades, and the developer is counting on your exhaustion. Its advantage is money and patience; yours is legitimacy, expertise, the law's open doors, and the fact that you are defending your home and your countryside while it is merely pursuing a return. Play to that. Keep the file, keep the association, keep the record and the coverage alive, protect your people, and treat every delay, every annulment, every référé, every disclosed document, and every headline as a brick in a wall that grows too high and too costly for the project to climb.

The tools are here, and France's history proves they work: an airport backed by a multinational, a region's officials, and a referendum was never built, because a movement organised, endured, and used every lever the law provides. What decides the outcome is method, endurance, and courage — and those you supply. Begin today, begin cheaply, and build from there. Communities before you have stopped what looked unstoppable — a field held for fifty years, a permit annulled in court, a species that turned out to matter more than a concession, a project the state finally let go. The tools are proven and the doors are open; what has ever been missing in the fights that were lost was not the law but the organisation and the endurance to use it. So can yours.